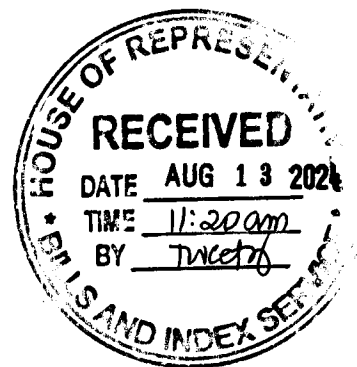




Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City, Metro Manila



NINETEENTH CONGRESS

Third Regular Session

HOUSE BILL NO. 10751

Introduced by HON. BAMBI B. EMANO

AN ACT

**MANDATING THE DEPARTMENT OF EDUCATION, COMMISSION ON HIGHER
EDUCATION, DEPARTMENT OF SCIENCE AND TECHNOLOGY AND
DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY
TO DEVELOP GENERATIVE ARTIFICIAL INTELLIGENCE (GenAI)
REGULATIONS TO MAXIMIZE ITS POSITIVE IMPACT ON PHILIPPINE
EDUCATION SYSTEM**

EXPLANATORY NOTE

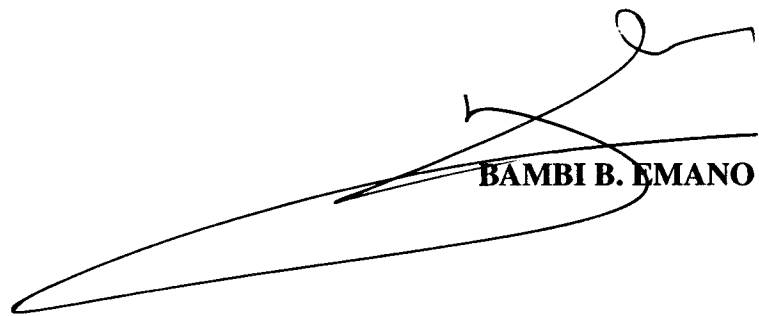
Section 12 of Art. XIV of the 1987 Constitution states that “the State shall regulate the transfer and promote the adaptation of technology from all sources for the national benefit. It shall encourage the widest participation of private groups, local governments, and community-based organizations in the generation and utilization of science and technology.” Adhering to this constitutional mandate, the Philippines must recognize the transformative potential of artificial intelligence (AI) in revolutionizing various sectors, including education. AI technologies, particularly Generative AI (GenAI), have the capability to personalize learning experiences, optimize teaching methodologies, and enhance educational outcomes for learners of all ages. However, the responsible integration and regulation of AI in education are crucial to maximize its positive impact and mitigate potential risks.

This measure aims to address the need for a clear regulatory framework governing the use of AI in Philippine education. Under this proposed legislation, the Department of Education (DepEd), Commission on Higher Education (CHED), Department of Science and Technology (DOST) and the Department of Information and Communications Technology (DICT) are mandated to collaborate in developing regulations specifically tailored for the integration of generative AI technologies in educational practices at all levels.

In line with UNESCO's *Guidance for Generative AI in Education and Research*, the proposed measure shall ensure ethical and responsible AI use by establishing comprehensive guidelines so that GenAI becomes a tool that genuinely benefits and empowers teachers, learners and researchers.

This bill aims to prepare students for future careers by equipping them with the digital literacy skills and AI knowledge necessary to thrive in an increasingly AI-driven workforce and society. This initiative recognizes the growing importance of AI technologies across various industries and the need for a workforce that is proficient in these emerging AI technologies.

This legislation will not only maximize the benefits of AI but also safeguard our nation from its potential pitfalls. By adopting a forward-thinking approach, we are positioning the Philippines as a global leader in the responsible and ethical development of Generative Artificial Intelligence in this new phase of the digital era.



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Be it enacted by the Senate and the House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Title.* – This Act shall be known as the "**Philippine Generative Artificial Intelligence (GenAI) in Education Act.**"

SECTION 2. *Declaration of Policy.* – The State acknowledges that generative artificial intelligence (AI) technologies have the capacity to revolutionize educational methods and improve learning results. It is crucial to maximize generative AI's beneficial effects on education while maintaining its moral and responsible application. In order to maximize the advantages of generative AI technologies for students and teachers, this legislation seeks to require the Department of Education (DepEd), the Commission on Higher Education (CHED), the Department of Science and Technology (DOST) and the Department of Information and Communications Technology (DICT) to create regulations that support AI integration in our educational system.

SECTION 3. *Consultation and Stakeholder Engagement.* – DepEd, CHED, DOST and DICT shall conduct consultations with relevant stakeholders, including educators, students, parents, AI experts, industry representatives, civil society organizations, and government agencies, to solicit inputs and feedback on the formulation of generative AI regulations for education.

SECTION 4. *Capacity Building and Awareness.* – DepEd, CHED, DOST and DICT shall conduct capacity-building activities and awareness campaigns to promote understanding and adoption of generative AI technologies in education. These activities may include workshops, seminars, webinars, and informational materials aimed at educating stakeholders about the potential benefits and challenges of generative AI in education.

SECTION 5. *Establishment of the Generative AI in Education Council.* – A Generative AI in Education Council (GAIEC) is hereby established to oversee and guide the integration of generative AI technologies into the Philippine education system. The Council shall be composed of representatives from the following agencies and organizations:

(a) The Secretary of the Department of Education (DepEd), who shall act the chairperson;

(b) The Chair of the Commission on Higher Education (CHED) as co-chairperson;

(c) Executive Director of the Department of Science and Technology - Information and Communications Technology Office (DOST-ICTO);

(d) Head of the ICT Industry Development Bureau of the Department of Information and Communications Technology (DICT-IIDB);

(e) One (1) representative from Technical Education and Skills Development Authority (TESDA);

(f) One (1) representative from the National Privacy Commission (NPC);

(g) Three (3) members representing professional or industrial artificial intelligence or information technology (IT) organizations to be selected by the chairperson from among the list of nominees submitted by Philippines-based ICT professional organizations; and

(h) Three (3) members representing professional or industrial artificial intelligence or information technology (IT) organizations to be selected by the chairperson from among the list of nominees submitted by Philippines-based ICT non-governmental IT organizations.

The Council may avail itself of the expertise and services of local or international resource persons who are of known expertise, knowledge, and/or skill during the deliberative sessions.

The Council and its resource persons shall be entitled to such reasonable per diems, allowances, and honoraria as may be allowed under existing laws, rules, and regulations.

SECTION 6. *Functions of the Generative AI in Education Council.* – The Council shall have the following functions:

(a) Formulate policy framework for the integration of generative AI technologies into educational practices, including curriculum development, teaching methodologies, assessment strategies, and student support services. The guidelines shall provide recommendations and best practices for the ethical and responsible use of generative AI in

education, ensuring alignment with the objectives of this Act and taking into consideration the following perspectives:

1. Inform learners about the types of data that GenAI may collect from them, how these data are used, and the impact it may have on their education and wider lives;
2. Prevent the use of GenAI where it would deprive learners of opportunities to develop cognitive abilities and social skills through observations of the real world, empirical practices such as experiments, discussions with other humans, and independent logical reasoning;
3. Ensure sufficient social interaction and appropriate exposure to creative output produced by humans and prevent learners becoming addicted to or dependent on GenAI;
4. Redesign written assignments to focus on tasks where students will not be solely dependent on GenAI tools;
5. Enable teachers to create specific GenAI-based tools to facilitate learning in the classroom and in their own professional development.

(b) Monitor and evaluate the implementation of AI regulations and guidelines developed, ensuring alignment with the objectives of this Act;

(c) Facilitate multi-sectoral collaboration and partnerships among government agencies, private sector entities, educational institutions, and civil society organizations to promote the effective use of generative AI in education;

(d) Organize capacity-building initiatives and knowledge-sharing platforms to enhance the competencies of educators, administrators, and other stakeholders in utilizing AI technologies in education;

(e) Ensure compliance with national and international ethical standards, data privacy laws, and human rights principles in the deployment of AI technologies in education;

(f) Submit annual reports to Congress detailing the progress, challenges, and impacts of the integration of generative AI in the education system.

SECTION 7. *Reporting and Review.* – The Council shall submit annual reports to the Office of the President. Additionally, Congress shall have an oversight function by conducting periodic reviews of the regulations and guidelines to assess their effectiveness, relevance, and alignment with the objectives of this Act."

SECTION 8. *Appropriations.* – The necessary funds for the implementation of this Act shall be included in the annual budgets of DepEd, CHED, DOST and DICT. Thereafter, such sums as may be necessary for the continued implementation of this Act shall be included in the General Appropriations Act.

SECTION 9. *Implementing Rules and Regulations.* – The Generative AI in Education Council, shall issue within sixty (60) days from the effectivity of this Act the necessary rules and regulations for the effective implementation of this Act.

SECTION 10. *Repealing Clause.* – All laws, executive orders, proclamations, rules, regulations and other issuances or parts thereof which are inconsistent with the provisions of this Act are hereby repealed, amended, or modified accordingly.

SECTION 11. *Separability Clause.* – If any part of this Act is held unconstitutional or invalid, other parts or provisions thereof which are not affected shall continue in full force and effect.

SECTION 12. *Effectivity.* – This Act shall take effect fifteen (15) days following completion of its publication in the Official Gazette or at least two (2) newspapers of general circulation.

Approved,